

26LBCV00105 26LBCV00105

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-13

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Case Number: 26LBCV00105 Hearing Date: August 13, 2026 Dept: S27

1. Background

Facts

On November 5, 2025, Plaintiff Peggaysha J. Osanna ("Plaintiff") filed this action against Defendant Cornerstone Build and Restoration Inc. ("Defendant"), alleging causes of action for (1) breach of written contract; (2) negligence; (3) breach of implied warranty; and (4) breach of express warranty.

On May 18, 2026, Plaintiff filed the instant motion for leave to file a first amended complaint.

No opposition was filed.

2. Leave to Amend Complaint

a. Legal Standard

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an

answer to be made after the time limited by this code.” (Code Civ. Proc., § 473, subd. (a)(1).)

“Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” (Code Civ. Proc., § 576.)

b.

Discussion

Plaintiff's

motion is procedurally defective. The motion shall be accompanied by a declaration attesting to when the facts giving rise to the amended allegations were discovered. (Cal. Rules of Court, rule 3.1324(b).) Here, while Plaintiff filed a document titled “Declaration of DW Duke in Support of Motion for Leave to File First Amended Complaint,” the actual document is a duplicate copy of the motion. Further, Plaintiff's proposed first amended complaint, which was purportedly attached to the declaration, was not filed either.

3. Conclusion

Therefore, the

Court continues the motion to August 27, 2026.. Plaintiff is ordered to re-file the declaration along with proposed first amended complaint by August 20, 2027.